

FIRST ADDENDUM TO LEASE AGREEMENT

This First Addendum To Lease Agreement (“**First Addendum**”) is entered into as of the dates set forth below, but effective for all purposes as of March 1, 2020, by and between **BELLE REALTY OF LAFAYETTE, L.L.C.**, a Louisiana limited liability company (the “**Lessor**”) and **DEALERTRACK REGISTRATION AND TITLING SERVICES - LOUISIANA, LLC**, a Delaware limited liability company, qualified to and doing business in the State of Louisiana, dba Auto Title Express (the “**Lessee**”).

RECITALS

WHEREAS, Lessor and Lessee entered into a certain Lease Agreement effective November 1, 2014 (the “**Lease Agreement**”); and

WHEREAS, the Initial Term of the Lease Agreement expires at midnight, Lafayette, Louisiana time on February 28, 2020; and

WHEREAS, Lessee desires to exercise its First Extension provided for in Section 31.01 of the Lease Agreement, and to extend the Lease Agreement for an additional three (3) year period, from March 1, 2020 to February 28, 2023 (the “**First Extension Term**”); and

WHEREAS, the Lessor and Lessee desire to change the Common Area Maintenance Charges and Taxes and Insurance Charges during the First Extension Term in light of increasing taxes and insurance costs; and

WHEREAS, Lessee and Lessor desire to enter into this First Addendum to Lease Agreement to memorialize Lessee’s exercise of the First Extension and to provide for related matters.

NOW THEREFORE, in consideration of the foregoing, the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. All capitalized terms used herein and not otherwise specifically defined herein shall have the meanings ascribed to those terms in the Lease Agreement.
2. Lessor and Lessee acknowledge and agree that, by the terms of the Lease Agreement, the Lease Agreement expires on February 28, 2020. Lessor and Lessee agree that the intention of the parties was for the Initial Term to expire on February 29, 2020.
3. Lessee hereby exercises the First Extension, extending the Term of the Lease for the First Extension Term, from March 1, 2020 through February 28, 2023.

Lessor’s Initials _____

Lessee’s Initials _____

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4. Section 4.01(B)(1)-(3) of the Lease Agreement is hereby amended to read as follows:

B. Additional Rent. During the Initial Term, the Lessee shall pay to the Lessor, as additional rent ("Additional Rent"), the following amounts:

1. Common Area Maintenance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the Common Area (as hereinafter defined) maintenance charges ("Common Area Maintenance Charges"). The Common Area Maintenance Charge shall mean the aggregate of all costs and expenses payable by Lessor in connection with the operation and maintenance of the Common Area in the Boulevard Shopping Center Property, including but not limited to landscaping costs, parking area maintenance costs (including repairing, resurfacing, cleaning and striping), utility costs (including water, sewer, electricity and gas), security system costs, life and safety systems costs, electronic monitoring system costs, compensation (including employment taxes and benefits) of all persons who perform duties connected with the operation and maintenance of the Common Area and any other reasonable costs incurred by the Lessor with respect to the Common Area and not otherwise reimbursed by the Lessee hereunder. Common Area shall mean all areas, space, equipment and special services provided by the Lessor for the common or joint use and benefit of the Lessee and other tenants, their employees, agents, servants, suppliers, customers and other invitees, including but not limited to retaining walls, fences, landscaped areas, parking areas, curbs, driveways, sidewalks, private roads, green spaces, landscape areas, patios, service areas and all common areas and other areas all as shown on the site plan attached hereto as **Schedule B.**
2. Tax and Insurance Charges. The Lessee shall pay to the Lessor, the Lessee's Pro Rata Portion (as hereinafter defined) of the annual charges incurred by the Lessor for taxes and insurance coverage for the Boulevard Shopping Center Property ("Taxes and Insurance Charges"). Tax charges shall include all real property taxes, personal property taxes, improvement bonds and other charges or assessments which are levied upon or with respect to the Boulevard Shopping Center Property, including any increase in such taxes or a reassessment of the value of the Boulevard Shopping Center Property, licenses, fees, or other taxes or fees levied in connection with the Lessor's leasing or rental of the Boulevard Shopping Center Property, but shall not include any federal or state income tax imposed upon the Lessor. Insurance charges shall include the cost of any insurance

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obtained by the Lessor in connection with the Boulevard Shopping Center Property, including but not limited to fire, casualty and liability insurance policies.

3. Payment of Additional Rent. The Lessee shall pay Common Area Maintenance Charges and the Taxes and Insurance Charges monthly as Additional Rent. The parties agree that the Lessee's Pro Rata Portion of the Common Area Maintenance Charges for the period beginning March 1, 2020 and ending February 28, 2023, shall be \$2.10 per square foot of the Premises annually, payable monthly as provided herein. The parties further agree that the Lessee's Pro Rata Portion of the Taxes and Insurance Charges for the period beginning March 1, 2020 and ending February 28, 2023, shall be \$1.85 per square foot of the Premises annually, payable monthly as provided herein.

The Total Monthly Rental Payment Amount of this Agreement shall be calculated as follows:

Months 1 through 36 of the First Extension Term

Base Rent	\$ 4,233.38
Common Area Maintenance Charges	\$ 591.08
Tax and Insurance Charges	<u>\$ 670.95</u>
Total Monthly Rental Payment	\$ 5,495.41

5. Section 4.01(B)(4) of the Lease Agreement shall remain unchanged.
6. Section 11.01 of the Lease Agreement shall be amended to add the following paragraph:

Lessee shall not disconnect the electricity, gas or water at any time during the term of this Agreement, including in anticipation of the termination of the tenancy created herein. Upon termination of the term of this Agreement, or in anticipation thereof, Lessee shall give Lessor reasonable written notice of its intent to disconnect electricity, gas and/or water service. Upon receipt of written notice to disconnect, Lessor may require, in its sole discretion, that Lessee cooperate with Lessor and do all things necessary to allow such utilities to be transferred into Lessor's name prior to disconnection.

7. Provided that Lessee is not in default in the performance of the Lease Agreement, this Agreement or the First Extension, Lessee shall have the option to renew and extend the lease for an additional term ("Second Extension"). The Second Extension shall be for five (5) years commencing on the next day following the expiration of the First Extension Term (the "Second Extension Term"). All of the terms and conditions of this Agreement shall apply during the Second Extension Term except that the Total Monthly Rental

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Payment Amount shall be determined by agreement of the Lessor and Lessee in good faith at least sixty (60) days prior to the period for giving notice of exercise of the option for commencement of the Second Extension Term. The Second Extension option shall be exercised by written notice given to Lessor by Lessee not less than sixty (60) days prior to the expiration of the First Extension Term. If notice is not given in the manner provided herein and within the time specified, this option to renew shall terminate. If the parties cannot agree as to the renewal rent rate by the date for giving notice of exercise of the option, the renewal rate will be increased by an amount equal to the percentage increase in the Consumer Price Index from March 1, 2020. For this purpose, "Consumer Price Index" means the 12-month percentage increase in the Consumer Price Index-Urban Wage Earners and Clerical Workers, U.S. All items, 1982-84=100 - CWUR0000SA0, published by the U.S. Department of Labor, Bureau of Labor Statistics. In the event the Bureau of Labor Statistics ceases to publish such index, the successor index will apply or, if no successor index is published, the parties will designate an alternative Consumer Price Index published by the Bureau of Labor Statistics.

8. The Lessor and the Lessee hereby agree that the terms and conditions of this First Addendum shall be kept confidential between the Lessor and Lessee and shall not be disclosed to any other persons, including but not limited to any tenants or occupants of On The Boulevard Shopping Center. The Lessee acknowledges that the foregoing covenant of confidentiality constitutes a portion of the consideration delivered to the Lessor to induce the Lessor to execute and deliver this First Addendum and any breach thereof shall constitute an event of default by the Lessee under the Lease Agreement.
9. The remainder of the terms of the Lease Agreement not specifically amended herein by this First Addendum shall remain and be in full force and effect.
10. This First Addendum to Lease Agreement may be executed in two or more counterparts each of which when executed and delivered as prescribed shall constitute an original.

[Remainder of page intentionally left blank. Signatures follow.]

Lessor's Initials _____

Lessee's Initials _____

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THUS DONE AND SIGNED as of the date set forth below by the Lessor.

LESSOR:

BELLE REALTY OF LAFAYETTE, L.L.C.
a Louisiana limited liability company

By: _____
Edward E. Abdalla, IV
Manager
Dated: August ____, 2019

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Lessee's Initials _____

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THUS DONE AND SIGNED as of the date set forth below by the Lessee.

LESSEE:

**DEALERTRACK REGISTRATION AND
TITLING SERVICES - LOUISIANA, LLC,** a
Delaware limited liability company

By: _____
Printed name: _____
Its: _____

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Lessee's Initials _____

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